

26STCV08941 26STCV08941

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Case Number: 26STCV08941 Hearing Date: June 25, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA¿¿

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14¿

¿

JANET LARKLY,

Plaintiff,¿

v.

ALBERTSONS COMPANIES, INC., et al.,

¿

Defendants.¿¿

Case No. 26STCV08941

¿¿¿¿

Hearing Date: June 25, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

SPECIALLY APPEARING DEFENDANT BASHAS' INC.'S
MOTION TO QUASH SERVICE OF SUMMONS AND COMPLAINT FOR LACK OF PERSONAL
JURISDICTION

I.

Background

On April 30, 2026, Plaintiff Janet Larkly filed her first amended complaint for personal injury alleging she developed mesothelioma from familial and personal use of asbestos-containing talcum powder products throughout her lifetime, including personal use of cosmetic products starting in high school, and her mother's use of powder products on her brother and herself starting from infancy. Plaintiff also alleges she was exposed to asbestos-containing materials while at jobsites due to their presence and use by other contractors. As against specially appearing Defendant Bashas' Inc. ("Bashas' " or "Defendant"), Plaintiff alleges Bashas' is joined "for retailing talc products" containing asbestos that she was exposed to in various residences throughout California from 1950-2008, her residence in Texas from 2008 to 2015, and various residences throughout Arizona from 2015 to the present.

On March 27, 2026, Defendant Bashas' filed its motion to quash arguing Plaintiff failed to show evidence supporting the exercise of jurisdiction over it. Defendant argues it is an out of state corporation with only one previous retail grocery store location in Needles, California, which operated between 1989 and May 2014, and is therefore not subject to general jurisdiction in California. Defendant further argues that Plaintiff failed to present evidence that her claims arise from or relate to Defendant's California contacts, especially because Plaintiff alleges she was exposed to asbestos by talc powder sales in Los Angeles County and Needles is in San Bernardino County.

On April 11, 2026, Plaintiff opposed, arguing the court may exercise special jurisdiction over Defendant because it was registered to do business in California in 1988 and 1989 and Defendant conceded that it operated the Needles location at the time of registration and for almost 25 years. Plaintiff also

argues that she satisfies the purposeful availment prong because her underlying allegations that she purchased asbestos-containing talc body powder and cosmetics and Defendant's retail of such products are enough at this stage. As to the reasonableness prong, Plaintiff argues that she has sufficiently demonstrated that the court has specific jurisdiction here and so the burden moves to Defendant, who submitted no evidence of unfairness or unreasonableness. In the alternative, Plaintiff argues she is entitled to jurisdictional discovery to present evidence to support her contention that Defendant was a retailer of asbestos-containing talc body and cosmetic powders. Plaintiff relies primarily on Defendant's Statement and Designation by Foreign Corporation filed on August 26, 1988, and Defendant's Certificate of Surrender of Right to Transact Intrastate Business filed on July 26, 1989.

The court finds Plaintiff failed to present sufficient evidence to show that Plaintiff's claims arise from or relate to Bashas' California contacts. Plaintiff likewise fails to present sufficient evidence to show she is entitled to a continuance to conduct jurisdictional discovery. Therefore, Defendant's motion to quash is granted.

II.

Discussion

A.

Legal Standards

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defendant may move to quash service of summons on the ground of lack of jurisdiction of the court over them. (Code Civ. Proc., § 418.10, subd. (a)(1).) The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10. (Code Civ. Proc., § 581, subd. (h).)ç

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court of this state may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States." (Code Civ. Proc., § 410.10.) "The Due Process Clause protects an individual's liberty interest in not being subject to the binding judgments of a forum with which he has established no meaningful 'contacts, ties, or relations.'" (Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462, 471 – 472.) A state court may not exercise personal jurisdiction over a party under circumstances that would

offend "traditional notions of fair play and substantial justice." (Asahi Metal Industry Co., Ltd., v. Superior Court of California, Solano County (1987) 480 U.S. 102, 113.)

When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction. (Jayone Foods, Inc. v. Aekyung Industrial Co. Ltd. (2019) 31 Cal.App.5th 543, 553.) Once facts showing minimum contacts with the forum state are established, the defendant has the burden to demonstrate the exercise of jurisdiction would be unreasonable. (Ibid.) "The plaintiff must provide specific evidentiary facts, through affidavits and other authenticated documents, sufficient to allow the court to independently conclude whether jurisdiction is appropriate. [Citation.] The plaintiff cannot rely on allegations in an unverified complaint or vague and conclusory assertions of ultimate facts. [Citation.]" (Strasner, supra, 5 Cal.App.5th at p. 222.)

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defendant is subject to a state's general jurisdiction if its contacts "are so continuous and systematic as to render [it] essentially at home in the forum State." (Daimler AG v. Bauman (2014) 571 U.S. 117, 127.) A nonresident defendant may be subject to the specific jurisdiction of the forum "if the defendant has purposefully availed himself or herself of forum benefits [citation], and the 'controversy is related to or 'arises out of' a defendant's contacts with the forum.' [Citations.]" (Vons Companies, Inc. v. Seabest Foods, Inc. (1996) 14 Cal.4th 434, 446.) This test does not require a "causal relationship between the defendant's in-state activity and the litigation." (Ford Motor Co. v. Montana Eighth Judicial District Court (2021) 592 U.S. 351, 362) The "arise out" of standard "asks about causation," but "relate to" does not. (Ibid.) "[W]hen a corporation has 'continuously and deliberately exploited [a State's] market, it must reasonably anticipate being haled into [that State's] court[s]' to defend actions 'based on' products causing injury there." (Id. at p. 364.)

B.

General Jurisdiction

General jurisdiction is not

at issue. Plaintiff does not argue that Bashas' is subject to general jurisdiction in California. Accordingly, the court analyzes whether Plaintiff presents evidence that Defendant is subject to specific jurisdiction in California.

C.

Specific Jurisdiction

A court may exercise specific jurisdiction over a plaintiff when three elements are satisfied: "(1) 'the defendant has purposefully availed himself or herself of forum benefits' [citation]; (2) 'the controversy is related to or "arises out of" [the] defendant's contacts with the forum' [citation]; and (3) ""the assertion of personal jurisdiction would comport with 'fair play and substantial justice'" [citation.]" (Pavlovich v. Superior Court (2002) 29 Cal.4th 262, 269.)

Here, Bashas' argues that there is no factual basis to establish specific jurisdiction because Plaintiff has not established a connection between non-resident Defendant and California. Plaintiff has not shown or provided evidence that she purchased and used asbestos-containing talc powders from Defendant's Needles location between 1989 and 2014. (Motion at pgs. 8-9 [To exercise specific jurisdiction over a nonresident defendant, there must be an "affiliation between the forum and the underlying controversy, principally [an] activity or an occurrence that takes place in the forum State." (Bristol-Myers Squibb Co. v. Superior Court of California (2017) 582 U.S. 255, 282 (Bristol-Myers), citing Goodyear, supra, 564 U.S. at p. 931.) "When there is no such connection, specific jurisdiction is lacking regardless of the extent of a defendant's unconnected activities in the State. (Ibid., citing Goodyear, supra, 564 U.S. at p. 93.) The only connection between Bashas' and the State of California was that Bashas' had a retail grocery location in Needles, California, between 1989 and 2014. (Exhibit "A," ¶ 3.) To establish a claim for specific jurisdiction over Bashas' therefore, Plaintiff would have to submit an affidavit or authenticated documentation demonstrating that she purchased and used talc powder containing asbestos from Bashas' Needles location during that time period. (See Auto. Antitrust, supra, 135 Cal.App. 4th at 110–11; Via View, Inc. v. Retzlaff (2016) 1 Cal.App.5th 198, 210; Paneno v. Centres for Academic Programmes Abroad Ltd. (2004) 118 Cal.App.4th 1447, 1454.)).)

1. Purposeful

Availment

Purposeful availment “focuses on the defendant’s intentionality. This prong is satisfied when the defendant purposefully and voluntarily directs his activities toward the forum so that he should expect, by virtue of the benefit he receives, to be subject to the court’s jurisdiction based on his contacts with the forum.” (Pavlovich, *supra*, 29 Cal.4th at p. 269.)

Here, Defendant argues that the only connection between California and itself was the retail grocery location in Needles between 1989 and 2014. (Motion at p. 8.) The court notes that while Defendant references Exhibit “A,” which it states is the declaration of David C. Basha, no Exhibits have been attached to the motion, nor has the Declaration been filed separately.

In opposition,

Plaintiff argues that this prong is not in dispute because Defendant was registered to do business in California in 1988 and 1989 and conceded that it operated the Needles grocery store from May 18, 1989 to May 2014. (Opp. at p. 3; Halbany Decl., Exh. 1.) Bashas’ surrendered its right to transact intrastate business on July 3, 1989, which was filed with the Secretary of State of the State of California on July 26, 1989. (Id., Exh. 2.)

The court agrees with Plaintiff that this prong is not in dispute because Defendant’s motion as to specific jurisdiction solely focuses on the connection between California and itself and the underlying controversy. Accordingly, the court turns to the relatedness prong.

2. Relatedness

A plaintiff may present sufficient evidence of relatedness where there is evidence the defendant “systematically served a market in [the forum state] for the very [products] that the plaintiffs allege malfunctioned and injured them in those States.” (Ford, *supra*, 592 U.S. at p. 366.) The inquiry must be focused on determining whether there is “a connection between the

forum and the specific claims at issue.” (Bristol-Myers Squibb Co. v. Superior Court of California, San Francisco County (2017) 582 U.S. 255, 265.) Accordingly, the court looks to determine whether Plaintiff presented evidence that Defendant served the California market for the same product Plaintiff alleges injured her. 2

Plaintiff fails to present sufficient evidence to support a finding of relatedness. Plaintiff fails to present evidence of what products she alleges harmed her and where she obtained them. In her complaint, Plaintiff merely states Defendant retailed “talc products.” (Compl. ¶ 25.) In opposition, Plaintiff only references “asbestos-containing talc body powder and cosmetics, and alleges that Bashas was a retailer of these products.” (Opp. at p. 3.) Plaintiff does not present any admissible evidence to support her exposure to these general categories of asbestos-containing talc body powder and cosmetics or that she purchased those products from Defendant’s grocery store in Needles. On this motion, Plaintiff must present admissible evidence to support her theory of jurisdiction. (Strasner, supra, 5 Cal.App.5th at p. 222 [“The plaintiff must provide specific evidentiary facts, through affidavits and other authenticated documents, sufficient to allow the court to independently conclude whether jurisdiction is appropriate. [Citation.] The plaintiff cannot rely on allegations in an unverified complaint or vague and conclusory assertions of ultimate facts. [Citation.]”]) Accordingly, in the absence of any admissible evidence regarding what products Plaintiff used or where Plaintiff purchased them, there is no evidence from which the court could make the determination that Plaintiff’s claims arose from or related to Defendant’s forum contacts.

Plaintiff’s contention appears to be that she was not required to present any admissible evidence of her exposure to a product for which Defendant was responsible to satisfy her burden on relatedness. (Opposition at p. 3 [“in Jayone Foods, the Court of Appeal upheld California’s specific personal jurisdiction over a distributor’s cross-complaint for indemnity against a foreign manufacturer, because the allegations of the underlying tort complaint were based in California.”].) Plaintiff’s opposition therefore relies exclusively on the allegations in her complaint as to support her theory of relatedness. (Id. at pp. 3-4.)

Plaintiff's

interpretation of the Jayone case as permitting her to show she satisfied the relatedness prong without admissible evidence of the product at issue is unpersuasive. The Jayone case arose from a cross complaint filed by the defendant and cross complainant Jayone against another Defendant. (Jayone, supra, 31 Cal.App.5th at pp. 548-549 ["Plaintiffs allege that An's death was caused by her long-term and frequent use of the Aekyung Humidifier Cleaning Agent, and on that basis, assert claims for products liability and negligence. [¶] On December 2, 2015, Jayone filed a cross-complaint against Aekyung (a Korean corporation), Kim's Home Center (a California corporation), and Woosung America Corporation (Woosung) (a California corporation)."] The cross-complaint alleges claims for equitable indemnity, contribution, and declaratory relief with respect to any judgment rendered against Jayone and in favor of Plaintiffs."]) Accordingly, unlike in this case, the evidence supporting the underlying exposure to the allegedly hazardous product in the Jayone case was not in the possession of the party opposing the motion to quash. Instead, the Jayone cross-complainant was able to rely on the plaintiff's allegations in the underlying complaint as an admission of the plaintiff of their theory of the case.

Second, in Jayone the evidence presented by the cross-complainant specified the product at issue in the case. There, the cross-complainant's opposition included a declaration and deposition testimony directly identified the product at issue in the plaintiff's underlying complaint and discussed the time period during which these products were imported by cross complainant from the cross defendant. (Jayone, supra, 31 Cal.App.5th at p. 550-552.) This latter evidence was key to supporting a finding of relatedness in the case. (Id. at p. 560 ["In opposing Aekyung's motion to quash, Jayone presented evidence that it directly purchased from Aekyung 200 boxes of the Humidifier Mate in April 2006, and another 100 boxes of the Humidifier Mate in January 2007. All products were shipped to Jayone at the Port of Los Angeles. Jayone also presented evidence that it sold 55 boxes of the Humidifier Mate to Kim's Home Center in Los Angeles between 2006 and 2007. Those sales occurred in December 2006, October 2007, and November 2007. The Humidifier Mate products that Jayone sold to Kim's Home Center

included product that Jayone purchased from Aekyung in April 2006 and January 2007. Accordingly, the record shows that, between 2006 and 2007, (1) An allegedly purchased the Aekyung Humidifier Mate directly from Kim's Home Center; (2) Kim's Home Center purchased 660 bottles of the Humidifier Mate directly from Jayone; and (3) Jayone purchased 3,600 bottles of the Humidifier Mate directly from Aekyung. These California sales involving the Aekyung Humidifier Mate substantially connect Plaintiffs' claims to Aekyung's contacts with the state."]

Here, in contrast, Plaintiff is the only party who possesses the relevant evidence that would show what products she was exposed to and nevertheless failed to identify the products at issue in this case. The court recognizes that Plaintiffs are under no obligation to prove that Defendant caused Plaintiff's injuries at the jurisdictional stage. (*Bader v. Avon Products, Inc.* (2020) 55 Cal.App.5th 186, 198 ["In sum, neither Bristol-Myers nor any other authority cited by Avon requires proof of a product defect at the jurisdictional phase, and the trial court erred by requiring Bader to establish that the Avon perfumed talc powder used by Schmitz contained asbestos at this juncture"].) However, Plaintiff is required to present evidence that the products she alleges injured her were connected to Defendant's intentional contacts with California. (*Id.* at p. 200 ["This evidence establishes that Avon used sales representatives to market and sell the products at issue directly to Schmitz in California. This evidence establishes a sufficient "affiliation between the forum and the underlying controversy, principally, [an] activity or an occurrence that takes place in the forum State and is therefore subject to the State's regulation.""]) Accordingly, while Plaintiff did not need to present evidence that any specific product to which she was exposed contained asbestos at this stage, Plaintiff was required to provide some evidence that Bashas' purposefully availed itself of the California market by intentionally selling products to California and that the sales of these products were related to the injury that Plaintiff suffered. In the absence of admissible evidence regarding what product or products Plaintiff alleged caused her injuries, the court has no way to make either determination.

Therefore,
Plaintiff failed to present sufficient evidence to support a finding of relatedness.

D.

Jurisdictional Discovery

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plaintiff attempting to assert jurisdiction over a nonresident defendant is entitled to an opportunity to conduct discovery of the jurisdictional facts necessary to sustain its burden of proof[.]” (Hardell v. Vanzyl (2024) 102 Cal.App.5th 960, 975-976; Goehring v. Superior Court (Bernier) (1998) 62 Cal.App.4th 894.) The court has “discretion to continue the hearing on a motion to quash service of summons for lack of personal jurisdiction to allow the plaintiff to conduct discovery on jurisdictional issues.” (HealthMarkets, Inc. v. Superior Court (2009) 171 Cal.App.4th 1160, 1173.) However, “In order to prevail on a motion for a continuance for jurisdictional discovery, the plaintiff should demonstrate that discovery is likely to lead to the production of evidence of facts establishing jurisdiction.” (In re Automobile Antitrust Cases I & II (2005) 135 Cal.App.4th 100, 127.)

Plaintiff

argues that limited jurisdictional discovery is appropriate here without presenting sufficient evidence to entitle her to conduct jurisdictional discovery. Plaintiff states discovery would be directed to Defendant's purposeful availment, including the foundation for David Basha's declaration statements, which the court noted above has not been filed, and “all names under which any retail grocery stores were operated, and the dates and locations of all retail stores operated, owned, or controlled by Bashas during the years that Plaintiff lived in California.” (Opp. at page 4.)

As

noted above, Plaintiff's opposition failed to present evidence regarding the products Plaintiff alleges Defendant was responsible for retailing which gave rise to Plaintiff's injuries. Because of this missing evidence, the court finds that Plaintiff has not presented evidence showing that it is likely that further discovery will lead to the production of facts supporting jurisdiction over Defendant. In the absence of evidence that Defendant is subject to general jurisdiction in California, there must be a relationship between Plaintiff's

causes of action and Defendant's California contacts to justify the exercise of specific personal jurisdiction over Defendant. Plaintiff need not prove her exposure to asbestos at this stage.

Because

Defendant is a retailer of final products, Plaintiff was required to submit evidence that she purchased and used asbestos-containing talc products from Defendant's Needles store location during the relevant time period. Plaintiff did not submit an affidavit, declaration, or authenticated documentation demonstrating purchase of products from Defendant's store or identification of products. The absence of admissible evidence supporting Plaintiff's threshold exposure to any identified product does not merit a continuance to conduct jurisdictional discovery into facts which should already be in Plaintiff's possession. Accordingly, the court finds that Plaintiffs failed to present sufficient evidence to merit a continuance to conduct jurisdictional discovery. Any jurisdictional discovery would not cure the absence of evidence regarding the identity of the products at issue and Plaintiff's exposure to those products. The court also notes that the preference trial date is less than three weeks from today's hearing.

III.

Conclusion

Plaintiff failed to present sufficient evidence to show that Bashas' is subject to jurisdiction in California. Plaintiff also failed to present sufficient evidence to entitle her to a continuance to conduct jurisdictional discovery because she presented no admissible evidence regarding what talc powder products she used and bought from Defendant's Needles store location which she alleges contained asbestos. Therefore, Defendant's motion to quash service of summons and complaint for lack of personal jurisdiction is granted. The court dismisses the complaint without prejudice pursuant to Code of Civil Procedure section 581, subdivision (h).

Moving Defendant Bashas' Inc. is ordered to give notice.